

24NWCV01909 24NWCV01909

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Case Number: 24NWCV01909 Hearing Date: August 20, 2026 Dept: D

ADRIENNE BERKE V. CITY OF DOWNEY, ET AL.

CASE NO.:

24NWCV01909

HEARING:

08/20/2026 @ 9:30 a.m.

#15

TENTATIVE

ORDER

Cross-Defendant Los Angeles County Office of
Education's motion for judgment on the pleadings is GRANTED.

Moving party to give notice.

Cross-Defendant Los Angeles County Office of
Education moves for judgment on the pleadings as to the Cross-Complaint of Cross-Complainant
the P.B. Guy, Inc.

Background

On June 18, 2024, Plaintiff initiated this
action.

On May 12, 2026, Plaintiff Adrienne Berke

(Plaintiff) filed the operative Second Amended Complaint (SAC) against Defendants City of Los Angeles, Discovery Sports Complex, and the PB Guy Inc., asserting five causes of action for: (1) Dangerous Condition of Public Property; (2) Negligence—Vicarious Liability for Employees; (3) Violation of Mandatory Duty Under Government Code Section 815.6; (4) Negligence; and (5) Premises Liability.

The SAC alleges that on or about August 25, 2023, Plaintiff was employed

as a teacher of incarcerated youth by the Los Angeles County Office of Education

(LACOE). Plaintiff alleges that the City contracted with LACOE via issuance of a permit to host a one-day event to “welcome the new year for schools and celebrate [LACOE’s] team” and the event was called the “2023 LACOE Wellbeing Fest” which was to take place at the Discovery Sports Complex, which Plaintiff attended.

While at the LACOE Wellbeing Fest, Plaintiff had a seat in a chair provided by Defendants to drink some water. The chair was located near a photo backdrop that was owned and operated by a vendor, PB Guy. As Plaintiff was seated, a metal pole fell from the photo backdrop and struck Plaintiff, causing severe injuries.

On May 23, 2025, Cross-Complainant the PB Guy, Inc. (Cross-Complainant) filed a cross-complaint against Cross-Defendant Los Angeles County of Education (Cross-Defendant), alleging causes of action for: (1) Express Contractual Indemnity; (2) Negligence; (3) Implied and Equitable Indemnity; (4) Apportionment; and (5) Declaratory Relief.

On February 25, 2026, Cross-Defendant filed the instant motion for judgment on the pleadings.

On August 7, 2026, Cross-Complainant filed an opposition.

On August 13, 2026, Cross-Defendant filed a reply.

Legal Standard

A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438 subd.

(c)(1)(B).) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650.) “Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense.” (*Ibid.*)

“In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452; see also *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.)

“When a court evaluates a complaint, the plaintiff is entitled to reasonable inferences from the facts pled.”

(*Duval v. Board of Tr.* (2001) 93 Cal.App.4th 902, 906.) “In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged.” (*Fire Ins. Exch. v. Superior Court* (2004) 116 Cal.App.4th 446, 452.)

A motion for judgment on the pleadings normally does not lie as to a portion of a cause of action.

(*Ibid.*) “In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (*Gami v. Mullikin Medical Ctr.* (1993) 18 Cal.App.4th 870, 876.)

Meet and Confer

As an initial matter, Cross-Defendant failed to comply with the meet and confer requirement of CCP § 439(a)(2), as counsel's declaration does not attest to any meet and confer efforts.

In reply, Cross-Defendant's counsel argues that she reasonably believes that she met and conferred on the subjects in this

motion but lacks recall as to specific dates of such conversations because of the lengthy passage of time.

In any event, as this is not grounds to deny the motion (*id.*, at § 439(a)(4), the Court will turn to the merits of the motion, but admonishes counsel that the failure to satisfy the meet and confer requirements in the future may result in a continuance or a denial of its motion.

Analysis

Failure to Plead Compliance with Claims Presentation Requirement

“[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented . . . until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board” (Gov. Code, § 945.4.)

A failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738.)

This includes a claim for contract damages. (*Id.*, at 738-39.)

A complaint is subject to attack by demurrer if the plaintiff fails to include allegations that the plaintiff complied with the claims presentation requirement or that a recognized exception or excuse for noncompliance exists. (See *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 338.)

Here, the cross-complaint does not plead compliance with the Claims Presentation requirement. Cross-Complainant argues in Opposition that Defendant is equitably estopped from asserting the claims presentation requirement. However, this was not pled in the cross-complaint. As such, the motion for judgment on the pleadings as to the cross-complaint is GRANTED.

Leave to Amend

As to whether Cross-Complainant has shown it can successfully amend its cross-complaint, it argues that it can plead equitable estoppel.

In reply,

Cross-Defendant argues that there is no authority provided establishing equitable estoppel during litigation, after the claim was already due, when counsel apparently did not comprehend the applicable law. Cross-Defendant argues that most practitioners are aware that prior to suing a public entity, a Government Claim must be filed within six months of the event giving rise to the litigation.

Government Code section 911.2 provides that “[a] claim relating to a cause of action for death or for injury to person or to personal property . . . shall be presented . . . not later than six months after the accrual of the cause of action.” (Govt. Code, § 911.2(a).) If the proposed action is a claim for indemnification, then Government Code § 901 provides that the date that the action “accrues shall be the date upon which a defendant is served with the complaint giving rise to the defendant’s claim for equitable indemnity or partial equitable indemnity against the public entity.”

When such a claim is not presented within six months, the claimant must apply to the public entity for leave to present the claim within a reasonable time not to exceed one year after the accrual of the cause of action. (Gov. Code § 911.4.)

Here, Cross-Complainant was served with Plaintiff’s initial complaint in this matter on April 6, 2025. (See 4/7/2025 Proof of Service.) Cross-Complainant’s claims for indemnity therefore accrued on this date. (See Govt. Code § 901.) As a result, Cross-Complainant had until October 6, 2026 to file a claim with the government.

Further, as noted above, a late claim cannot be presented later than one year after the cause of action’s accrual. The cause of action accrued in April 2025. Thus, the latest the late claim could have been presented was April 2026. The failure to timely comply with the Government Code requirements concerning claims bars a subsequent suit. (*City of San Jose v. Superior Court* (1974) 12 Cal. 3d 447, 454; *Ridley v. City etc of San Francisco* (1969) 272 Cal. App. 2d 290, 292.)

As noted above, in opposition,

Cross-Complainant argues that equitable estoppel applies to prevent the Cross-Defendant from asserting the limitations of the claim statute. A public entity “may be estopped from asserting the limitations of the claims statute where its agents or employees have prevented or deterred the filing of a timely claim by some affirmative act.” (Santos v. Los Angeles Unified School Dist. (2017) 17 Cal.App.5th 1065, 1075.) “ ‘Estoppel most commonly results from misleading statements about the need for or advisability of a claim.’ [Citation.] However, ‘[e]quitable estoppel does not require factually misleading statements.’ [Citations.] ‘[A]ctual fraud or the intent to mislead is not essential.’ ” (Id. at 1075-76.) However, “[r]eliance by the party asserting the estoppel on the conduct of the party to be estopped must have been reasonable under the circumstances.” (Id. at 1076.)

“Estoppel as a bar to a public entity’s assertion of the defense of noncompliance arises when the plaintiff establishes by a preponderance of the evidence: (1) the public entity was apprised of the facts, (2) it intended its conduct to be acted upon, (3) plaintiff was ignorant of the true state of facts, and (4) [the plaintiff] relied upon the conduct to his detriment.” (Id.)

Cross-Complainant argues that Cross-Defendant either knew, or could readily determine from its own records, whether Cross-Complainant had presented a timely claim under Government Code section 911.2. Nevertheless, Cross-Defendant did not promptly challenge the Cross-Complaint on that basis. Instead, it filed a general Answer in August 2025 and actively litigated the action by participating in written discovery on October 9, 2025 – that conduct objectively conveyed that Cross-Defendant intended to defend the case on the merits rather than assert a procedural bar. Cross-Complainant argues that California courts have recognized that a public entity may be equitably estopped from asserting a Government Claims Act defense where it actively litigates the case before raising the claims-presentation requirement. (City of Stockton v. Superior Court, 42 Cal.4th 730, 744; Ortega v. Pajaro Valley Unified School District, 64 Cal.App.4th 1023, 1047; John R. v. Oakland Unified School District, 48 Cal.3d 438, 445.) Cross-Complainant argues that in reliance on Cross-Defendant’s conduct, Cross-Complainant continued litigating the case rather than pursuing available remedies under the Government Claims Act.

In reply, Cross-Defendant argues that there

are no affirmative acts here, and that it is not estopped from asserting the Government Claims Act defense for failing to promptly assert it under City of Stockton v. Superior Ct., at, 42 Cal. 4th at 746. Indeed, the Court of Appeal in City of Stockton reasoned that the argument that the public entity's delay in raising the defense precluded it from timely filing a claim would be irreconcilable with the statutory scheme that requires the presentation of claims before suit is filed. (Id.) "The purpose of providing public entities with sufficient information to investigate claims without the expense of litigation is not served if the entity must file a responsive pleading alerting its opponent to the claim requirements. [Cross-complainants] cannot shift responsibility for ascertaining the claim requirements to defendants." (Id.)

Cross-Defendant also contends that the claim was already due. While the tort claim was due on October 6, 2026, Cross-Defendant filed its answer in August 2025. However, significantly, the Court notes that Cross-Complainant could still have filed a late claim until April 2026-- this was after Cross-Defendant filed the instant motion in February of 2026 apprising Cross-Complainant it sought this defense. In Santee v. Santa Clara Cnty. Off. of Educ. (1990) 220 Cal. App. 3d 702, the Court of Appeal held that plaintiffs who had erroneously filed their government claim with the wrong public entity could not rely on estoppel because, when the error was corrected, they still had two months in which to submit a late-claim application to the correct entity before the one-year jurisdictional limit expired. The court explained: there are inherent limitations on an otherwise valid estoppel, and a plaintiff cannot rely on an estoppel if there is still ample time to take action within the statutory period after the circumstances inducing delay have ceased to operate. (Id., at 717.) Here too. After this motion was filed, Cross-Complainant had two months to file a late claim. Therefore, equitable estoppel does not apply. Thus, Cross-Complainant has not shown there is a possibility of amendment.

Leave to amend will therefore not be allowed.

Conclusion

Based on the foregoing, Cross-Defendant Los Angeles County Office of Education's motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND.